



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 14, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202208180 (Incident Date: November 23, 2022) regarding Police Officer Eduardo Fortuna, Tax No. 970524 (DADS No. 2024-29866), Police Officer Michael Prendergast, Tax No. 971620 (DADS No. 2024-29869), and Police Officer Brendan Giler, Tax No. 972345 (DADS No. 2024-29867)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202208180, pertaining to Police Officer Fortuna, Police Officer Prendergast, and Police Officer Giler. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that no disciplinary action is warranted in connection with some of the substantiated allegations against said Members of the Service.

The Police Commissioner intends to issue no disciplinary action for the allegation against each officer for refusing to provide their shield number. During this interaction the complainant clearly asked to take a picture of the officers' names and shields, which they all replied he could. Based on the body camera footage, the Police Commissioner has determined that the officers acted appropriately by complying with the complainant's request to take a photo of their name and shield. Administrative Guide Procedure No. 304-11 states "Courteously and clearly state your rank, name, shield number and command, or otherwise provide them to anyone who requests you to do so." The officers complied with the individual's request to take a photo of their name and shield.

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However, the Police Commissioner agrees with CCRB that the officers were required to provide business cards during this encounter. Therefore, the Police Commissioner directs that Police Officer Fortuna, Police Officer Prendergast, and Police Officer Giler receive no disciplinary action for the allegations that they failed to provide their shield numbers, and each be issued a Schedule "A" Command Discipline for failing to provide business cards.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', is written over a horizontal line.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office